



August 3, 2018

PERSONAL AND CONFIDENTIAL

Dr. Rick Mehta
Psychology Department
Horton Hall, Room 310
Acadia University, NS
B4P 2R6

Dear Dr. Mehta

I have reviewed all the material in the *MacKay* Report including all appendices, as well as a report from the inquiry Dr. Jeff Hooper, Dean of the Faculty of Pure and Applied Science, conducted and the documents he appended to his report.

There are very serious issues outlined in the *MacKay* Report and, taken together with the further documentation from Dr. Hooper's inquiry, I have concluded there are grounds for disciplinary action. In the discussion below I provide only examples to demonstrate the justification. The complete set of documentation submitted with this letter provides the details and particulars supporting the allegations. For greater clarity, while this letter sets out categories of inappropriate conduct, the particulars supporting this conduct are too voluminous to repeat in this letter. The grounds for disciplinary action are:

1. Unprofessional and non-collegial conduct directed at students, faculty and administration, including the creation of a poisoned work environment;

There are a wide range of examples cited and described in the *MacKay* and Hooper reports (and appendices) including everything from posting inappropriate material on your office door that is offensive, to making poisonous twitter statements that Acadia should start saving money by cutting the Women & Gender Studies Program. More specific examples discussed below are representative of the pervasiveness of your unprofessional and non-collegial conduct.

Specific to students, there is an inappropriate use of your position of authority/ power differential as you disseminate opinions: for example, your unacceptable conduct stemming from the article written by student _____ for the Athenaeum about women and science where you attacked both the article and _____ in many different foras. This includes your unprofessional usage of Acadia FYI to criticize _____ which goes out to all faculty and

staff and possibly even students described in *MacKay Section IV B1*. A further example is your interaction with student [redacted] on Facebook described in the same section of *MacKay*.

Another example stems from the incident of projecting the grades of psychology majors and minors in class and telling students that psychology majors were doomed for the future because their grades were lower than non-majors (*MacKay Appendix 7, Tab 2 and Hooper V 3*).

In addition, there is your unprofessional conduct in your class held March 26th, 2018 when you referred to your students as engaging in cult like behavior and referencing Jonestown. Further, there is the unprofessional, disrespectful conduct you demonstrated at the Honours thesis defences on [redacted] including rolling your eyes, laughing and shaking your head during [redacted]'s thesis presentation about the impact of science and math engagement on girls' self-efficacy described in *MacKay Section IV B 1*, as well as in the Hooper Report. While you turned to a series of tweets to apologize (documented in *MacKay Appendix 6, Tab 1B*) and personally emailed an apology to the student, the sincerity of your response (as noted by *MacKay* p.49 - 50 and in Dean Hooper's report) is questionable given that you followed this apology with retweeting others' messages.

Specific to faculty, many of your colleagues have expressed how your conduct has negatively impacted their work and the environment in the Psychology Department. Your conduct of acquiring the mail of [redacted] described in *MacKay Section IV B 2* is non-collegial and inappropriate. Further, examples involve your use of social media, including posting a letter you wrote to Dr. Hooper where you are critical of two colleagues and included student survey data to explain why you feel that it was in the Psychology department's best interest to have you teach the large intro psychology courses. You also insinuated that changes in your course assignments are a result of Dr. Brodeur disciplining you or retaliating against you because of issues related to collective bargaining. The information you posted is confidential, per Article 15.55, and should never have been made publicly available.

Specific to administration your approach to many issues has been unprofessional and insubordinate, including responding to Dean Hooper advising you to remove a post where you criticized the research of an Acadia graduate student in another discipline by taking to social media and reporting what you *claim* the Dean allegedly said as outlined in *MacKay* (Appendix 3, tab 3, Brodeur). Further, sensitive letters to you from Dr. Raeside and from me ended up be posted on various media sites (*MacKay Appendix 6, Tab 2B, pp 2 and 3*) claiming that your actions are an act of conscience and amount to whistleblowing.

2. Breaches of privacy in relation to students and colleagues;

Your attempts to profile yourself publicly without considering privacy rights of students demonstrates a shocking lack of professionalism and insensitivity. This is especially problematic because, as a professor, you are in a power position and in control of decisions that can have serious consequences for students.



Incidents that demonstrate your privacy breaches are outlined in the *MacKay* and Hooper reports. These include, but are not limited to, your decision to invite Global News into your classroom with no regard for students' privacy. Another, was your online postings where you provided identifying detail of the student [redacted] (*MacKay* Screenshot of RM's tweet attached to formal complaint. Appendix 2, Tab 20).

The decision to post your lectures in a publicly available Dropbox is extremely problematic. This action further demonstrates your disregard for the privacy rights of students and suggests you are more concerned with public online support than the interests of students. The public Dropbox posting of a recording of your [redacted] class in which student [redacted] disclosed her rape experience is reprehensible. The inappropriateness of this conduct was brought to your attention by Dr. Raeside (Letter March 6th, 2018 – included in Hooper Appendix C-3), yet you refused to acknowledge the problem or remove the posting.

Many relevant details identified during the *MacKay* investigation are outlined in *Section IV A 1* and the transcripts in *MacKay* Appendix 2. Not only did you not remove the audio file when requested, you responded by tweeting publicly to your followers to make copies to preserve the audio recordings online. When asked a question on Facebook about the expectation of privacy in the classroom you shockingly stated that "the student's right to confidentiality and privacy was lost the moment she loudly proclaimed what had happened to her in her personal life." (Screenshot save: *MacKay* Appendix 6, Tab 2)

Your privacy breaches have not been limited to students as is evident by many of the complaints from colleagues, including your posting of student survey data of other instructors. This information is confidential, per Article 15.55, and should never have been made public.

3. Creation of a poisoned, intolerant teaching environment, particularly regarding sensitive issues of gender and race;

"Maintaining a productive learning environment" is one of your academic responsibilities – Fifteenth Collective Agreement between The Board of Governors of Acadia University and The Acadia University Faculty Association Article 17.02. In addition, as a member of the University community, you are obligated to conduct yourself in a manner that respects and abides by the Acadia's Policy Against Harassment and Discrimination policy. There are many instances reported in *MacKay* where you have failed to uphold these responsibilities. I will highlight a few extracted from the *MacKay* Report. There are situations where you make rude, intolerant and degrading comments and present yourself in a hostile demeanor to students. An example of such an occurrence appears in the *MacKay* interview with student [redacted] when she recalled that you talked about rape culture in *Intro to Psych* and denied that sexual assault survivors are victims. You stated that women are assaulted because they put themselves in dangerous environments (*MacKay* Appendix 2, Tab 1). Other examples, identified by student [redacted] in her interview, are when you spoke unkindly of Indigenous persons, commented on how female students should try to prevent being raped and where you put a student's name in the



Powerpoint presentation in class and criticized the student openly to a large class of peers (*MacKay* Appendix 2, Tab 15).

On various occasions you brought some of your controversial social media posts into your classroom and thus linked your classroom teaching and your social media activities. As *MacKay* identifies in *Section VI A*, this is a point that you confirmed in your response to questions about this use of social media in your class (*MacKay* Appendix 7). To the extent that at least some of these posts are potentially discriminatory and/or harassing, the impact can be felt both in class and on social media. One student, _____ complained, (providing documentation to support (*MacKay* Appendix 2, Tab 21) that you have consorted with members of hate groups and movements including MRAs and the Alt-Right (e.g. Faith Goldy, a well-known Alt-Right sympathizer and suspected white supremacist) showing sympathy for their views and refusing to outright condemn their hate speech (*MacKay* Appendix 2, Tab 21).

Negative impacts on the teaching environment were also created by conduct that pits science against the arts. I will highlight a few examples extracted from the *MacKay* Report. Many students in your classes come from both faculties. Tweets such as the example of disparaging remarks about STEM and STEAM quoted in *MacKay* p. 64 and other examples as described in *MacKay Section V A 4* demonstrate the divisive nature of your conduct.

The cumulative effect of these behaviours, and others contained in the appended documents, have created a poisoned learning environment.

4. Making inappropriate and potentially discriminatory comments towards women and vulnerable groups in the course of his professional duties and on social media;

Evidence in the prior section obviously overlaps here and there are numerous other examples documented in the *MacKay* Report which include social media and face-to-face exchanges. As stated in the *MacKay* "the fact that there are sixteen different items in the category of potentially discriminatory or harassing posts is in itself alarming. It is also disconcerting that within this first category there are a wide range of targets. Indigenous peoples, racialized minorities, women, sexual identity and gender expression, immigrants and multiculturalism are all targets" (*MacKay* p. 81). Appendix 6 of *MacKay* organizes social media posts demonstrating who you have targeted.

MacKay Section V A 2 documents the impact of your conduct as explained by students, and faculty. External submissions, including _____'s statement, express concern about Indigenous students on the Acadia campus because of your public statements that gratuitously criticize the work of the Truth and Reconciliation Commission without valid explanation, academic support or relevance to your curriculum. _____ a self-identified victim of rape and a student in your course, described her reaction to what you posted about women (cited in *MacKay* p.77 Appendix 2, Tab 2). A group of three students cited in *MacKay* p.77 (found in



Appendix 2, Tab 6) commented that you are insensitively targeting Aboriginal people and transgender people online.

5. Personal harassment and bullying of students, faculty and other members of the university community;

As indicated above, you do not appear to recognize your responsibilities under Acadia's Policy Against Harassment and Discrimination policy. Moreover, you seem to be under the impression that your rights of "free speech" and academic freedom trump all other obligations to the university and members of the university community.

Your conduct in this regard has been far-reaching. *MacKay Section III B 1* states "Virtually every faculty and staff member identified situations of harassment and discrimination of women, transgendered individuals, black students, victims of violence, and Indigenous people."

Examples of harassment are outlined in *MacKay Section III B* where he discussed the roughly twenty seven (27) different forms he identified which often included several instances within that area. For example, there are situations where your comments denigrated women, such as suggestions that they are not good at math, they are irrational, they are advantaged if they have children and should have consulted Planned Parenthood before having children; you have also publicly demeaned a student for the quality of their research, then breached their privacy and posted comments inviting others to weigh in.

Regarding your online interactions with student [REDACTED] *MacKay* (p. 83) urges a "full read of the Twitter exchange to see the extent to which she was attacked and ganged up on by Dr. Mehta's followers on his site. He in no way defended his student and in part initiated the attack" (Appendix 6, Tab 2A, pp 123-144). My concern here, is not restricted to the harassment and bullying of [REDACTED] referred to above. It is coupled with a failure on your part to recognize the power imbalance between you as a faculty member and a student".

Many members of the Psychology department have expressed genuine concern for their safety. The interviews with faculty included in *MacKay* Appendix 3 speak to how you have harassed them through your social media posts. You have targeted department members in other forms of public communications such as talks and interactions like those described by [REDACTED] (*MacKay* Appendix 3, Tab 2) and discussed in *MacKay Section IV B 2*. These include your public attacks on WISE. One colleague expressed in the *MacKay* investigation, that he feels harassed indirectly by the way you poisoned the workplace and created stress among students and colleagues.

6. Significant deviations from academic syllabus and significant use of irrelevant non-academic sources in class, resulting in a failure to teach the required course material;



I consider your conduct related to this issue to be serious breach of your responsibilities as a professor. There has been a detailed analysis conducted by Dr. Diane Holmberg (Hooper Supplemental Section D) referred to in *MacKay* and considered as part of the inquiry conducted by Dr. Hooper. Lectures you posted publicly were reviewed by professors Holmberg and Symons and contained significant deviations from the curriculum. You presented a large amount of material that would not normally be in an introductory Psychology course. The courses you teach are to be based on descriptions approved by the Senate of Acadia University and, in the case of a course like Intro Psychology, there is a discipline-based expectation that topics and concepts will be covered that are typical of similar courses across the country.

A significant amount of class time (in some classes 90% or more) was spent on topics which are irrelevant, or not connected to the course syllabus. This means that students from these courses are not well-prepared for future courses and that you did not deliver the course Acadia contracted you to teach. As reported in *MacKay* (p.15), the concern about in-class diversions was shared by 24 of the 28 students interviewed (*MacKay* Appendix 2).

This clearly calls into question whether these students have had sufficient exposure to the science underlying psychology, or to key concepts related to their future programme of studies. This was a concern echoed by student _____ in her *MacKay* interview where she indicated that "we're not covering the course content, so it is hard to get good marks" (*MacKay* Appendix 2, Tab 1).

Your significant deviations from academic syllabus and regular use of irrelevant non-academic sources in class was informally brought to your attention by Dr. Hooper in mid-January and formally by Dr. Raeside in the first of his 15.50 (f) letters, yet no changes were made. After your meeting with Dr. Hooper under Article 14.02(a) in May 2018, he reported, "Dr. Mehta claimed that he only used relevant material, and that he only used academic sources for his content. Yet it is clear even from a cursory glance through his course materials that his statement to me is not true. There are a considerable number of items that are not from academic sources or whose relevance to psychology is dubious."

While I have concerns related to the content of your teaching as discussed above, another concern I have is your approach to those who challenge you or attempt to provide a different perspective in your classes, particularly vulnerable students. You claim in audio recordings, tweets, interviews and meetings with Dr. Raeside and Dr. Hooper that you are trying to offer a different perspective and that you are provocative to promote critical thinking. However, students report that you are quick to shut down people who disagree with your perspective and that you often ignore students who you do not wish to hear or respond to. *MacKay Section II B 2 & 3* identifies several relevant examples.

Excerpts from interviews in *MacKay* p. 20 comment on your defensive approach. As one member put it, "What happens with Dr. Mehta is not a question of content. It is a question of method". *MacKay* p.30 concludes, "While Dr. Mehta argues that he is definitely open to



challenge and debate, there is considerable evidence to suggest that this is not the case. His intentions do not appear to be applied effectively in reality (Appendices 2 and 3)."

7. Damaging the reputation of the institution by attacking the University and colleagues on social media;

In *MacKay* (Appendix 6) there are multiple posts demonstrating conduct where you damage the reputation of the University. These include comments you made where you give Acadia a one star rating and advise students not to attend the university since Acadia is pursuing a 'social justice agenda' and is not open to a range of perspectives. You also attack Open Acadia as a "cash cow" that "treats its employees like dirt."

External submissions demonstrate the impact your posts have had on the institution. A poignant submission was that of [redacted] a potential student (*MayKay* Appendix 4, Tab 3). Others remarked upon the anti-intellectual nature of some of your posts reported in *MacKay* (Appendix 4, Tab 6) drawing negative attention to Acadia.

While I consider all of these behaviors to be problematic, my most serious concern is the image you have created of Acadia publicly as an intolerant environment and as a place where vulnerable students may be attacked.

8. Unwilling to recognize harmful effects of actions on students and faculty.

For the past several months, issues involving the harmful effects of your class teaching, interactions with faculty and students, and inappropriate social media activities have been brought to your attention. These concerns, cautions and counseling have fallen on deaf ears. You have been completely unwilling to recognize the harmful impact that your actions are having on students, faculty and the University. Instead of taking responsibility for your actions, you have defiantly refused to adjust any of your conduct and "doubled down" on this activity by seeking support from free speech advocates outside of the University community under the guise of "freedom of expression" and "academic freedom". You have also provided selective information about your activities to free speech zealots and encouraged them to engage with students and faculty members.

You seem to be under the impression that your rights to free speech and academic freedom have no limits and cannot be balanced with other rights and obligations, including the rights of faculty members and students not to be subject to harassment, discrimination and intimidation, or obligations to create an inclusive teaching environment conducive to learning the core curriculum. As faculty members, we all have an obligation to create a challenging academic environment, but when dealing with sensitive subjects such as gender, gender identity, and race, these issues must be presented in a manner that is sensitive to students and relevant to the curriculum.

You have also failed to recognize that many of your social media activities cannot be separated from your academic, collegial and social obligations to this institution and individual members of



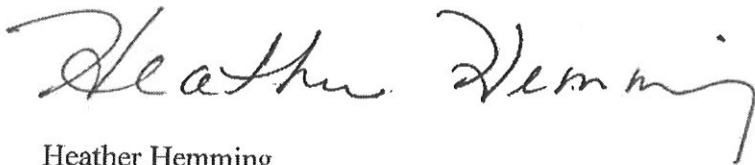
the Acadia community. Your decontextualized social media postings, engagement of free speech supporters, and your gratuitous criticism of the University are all cause for serious concern.

One of the most troubling aspects of this case is that you have not accepted responsibility for your actions or taken any steps to correct your behavior. This is evident from your denial that you are engaged in any inappropriate conduct. Once such example is the recent meeting you had with Dean Jeff Hooper, under Article 14.02(a), wherein you declared that you have no idea why that meeting was taking place.

In summary, your conduct, commentary, deviation from teaching curriculum and the poisoned teaching and collegial environment you have created is totally unacceptable and cannot be justified by rights to academic freedom or free speech. Your actions have extended well beyond the boundaries of such protections. Moreover, the cumulative and escalating nature of this behavior, coupled with your inability to recognize or take responsibility for the harm cannot be tolerated. This conduct has seriously damaged the environment in your department, the overall reputation of the University, student learning and our trust in you as a member of this academic community.

You will be provided with an opportunity to comment on and respond to these issues in a 14.03 meeting.

Sincerely,



Heather Hemming
Vice-President Academic
Acadia University

Encl.

Cc: Dr. Marc Ramsay, AUFA Senior Grievance Officer

Ron Pink, QC

